

Dhirendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 August 2014 · WRIT - C No. 42310 of 2014 · **Writ disposed; representation under Clause 6.14 directed.**

HEADNOTE

A writ challenging an electricity recovery citation, where the consumers offered to pay in instalments, was disposed of without examining the citation on merits. The Court noted Clause 6.14 of the U.P. Electricity Supply Code, 2005, under which the Executive Engineer, D.G.M. and General Manager may extend instalment facility to consumers in financial distress, and granted liberty to represent under that clause, directing a time-bound decision in accordance with law.

FACTUAL SUMMARY

The petitioners challenged a citation dated 2 July 2014 issued by the third respondent for recovery of Rs. 82,976 towards consumption of electrical energy. They told the Court they were ready and willing to deposit the entire amount in instalments. Counsel for the distribution corporation stated that Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, D.G.M. and General Manager to extend instalment facility to consumers in financial distress, and that the petitioners could approach those authorities with a representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-payment-clause-6.14

HOLDING

Where a consumer facing an electricity recovery citation offers to pay in instalments, the writ is disposed of with liberty to represent under Clause 6.14 of the U.P. Electricity Supply Code, 2005—under which the Executive Engineer, D.G.M. and General Manager may extend instalment facility to consumers in financial distress—and the authority must decide that representation in accordance with law, expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 2.7.2014 FOR RS. 82,976

Writ disposed without examining the citation on merits; instalment request left to the Clause 6.14 authority. ¶ 1